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Provision of August 3, 2023
Register of provisions
n. 352 of August 3, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data
(legislative decree June 30, 2003, n. 196), as
amended by legislative decree August 10, 2018, n. 101, containing
provisions for the adaptation of the national
legal system to the aforementioned Regulation (hereinafter
"Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Regulation of
the Guarantor n. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISE

1. The complaints of the interested party.
Mr. XX on April 7, 2022, submitted a
complaint to this Authority, stating that he had received
numerous promotional emails from various parties in
connection with his registration for a running event in
2020. As a result, he complained of having
lost, among the multitude of communications
received, the one in which he was invited to confirm
his registration for the year 2022; therefore, on March 10
2022, he wrote to various parties, including the
organizers of the initiative to revoke his
consent to the processing for promotional purposes,
giving a notice of 15 days to update the
systems, safeguarding "only the purposes not
strictly related to participation in the event."
With a second complaint, on April 24, 2022,
the interested party complained of continuing to receive -
despite the expiration of the legal deadline of 30
days to respond to the request (pursuant to
Article 12, paragraph 3, Regulation) - promotional
emails, some of which were unrelated to

the aforementioned sporting competition.

With a third complaint, received on February 16, 2023, the same Mr. XX reported further promotional communications, subsequent to the expressed opposition.

2. The preliminary investigation.

2.1. The intervention of the Office through requests for information and documentation.

In the context of the preliminary investigation - for details of which reference is made, for reasons of economy of this text, to the full content of the documents indicated below - the Office noted, regarding the first complaint, that the said 30-day deadline was ongoing and that it could not therefore intervene, communicating this to the interested party (see note April 21, 2022).

Regarding the second complaint, it emerged that the promotional communications, complained of by the interested party, were subsequent to the relevant deadline; therefore, a request for information was made on May 2, 2022, to Engagico srl ("Engagico"), Infront Italy spa ("Infront") and other parties, apparently involved in the complained processing, based on the analysis of the complaint, asking them to provide observations, each for their respective competence, and to comply with the requests of the complainant. It was also specifically requested to promptly delete the interested party's data and to promptly cease any promotional campaign (by any means and method), as well as to consequently cease any processing that may be ongoing (including any communication to third parties for marketing or profiling purposes).

The Office, having received, on February 16 of this year, the aforementioned third complaint from Mr. XX regarding the receipt of multiple promotional communications, subsequent to the opposition made by the interested party, (in particular, on the following dates: 03/10/2022; 11/11/2022; 09/12/2022; 23/12/2022; 13/01/2023; 16/01/2023; 10/02/2023), made on February 21 of this year a second request for information to Engagico and Infront, identified as necessary parties in the preliminary investigation initiated.

Overall, the responses (four) provided (on May 4 and 23, 2022; as well as March 13 and 15, 2023) by the two aforementioned parties (Infront - organizer of the events as well as the data controller - and Engagico, its data processor) were acquired; responses that proved useful in reconstructing the factual situation.

2.2. The response from Engagico

Engagico, in particular in its response of May 4 of this year, stated that, through its proprietary platform endu.net, it had provided multiple methods for revoking consent, including the unsubscribe link in the footer of the emails; the management of consents in the user's personal area and sending an email to the ordinary email address info@endu.net; however, the interested party had used the PEC address, which was not provided among the aforementioned methods, so his request had undergone a longer processing time. Furthermore, the Company stated that the request of the interested party had been taken into account and satisfied within the time limits set by the Regulation, of having ensured the deletion of all user data; of having removed his email from the database of the platform used for sending commercial, promotional communications and newsletters, retaining only the data related to Mr. XX's registration for events, "necessary retention - as indicated within the (own) Privacy Policy ... - to comply with administrative, tax, and contractual obligations (registration for the event involves an economic transaction, acceptance of the regulations, and any optional consents to receive communications)." Furthermore, according to what Engagico stated, "... within the lists at its disposal, the consents granted by each registrant are expressly indicated: this allows the Data Controller to verify and have a history of the authorizations granted or not." In conclusion of the above, Engagico stated that it had not sent any further communications to Mr. XX and that it was completely unrelated to the subsequent transmissions after receiving the opposition from the interested party.

2.3. The response from Infront.

Infront, in its response dated May 23, 2022, represented:

- that it had processed the personal data of the complainant in accordance with the consent granted by him, sending him, through its responsible party (and the relevant sub-responsible party), administrative and commercial communications related to the competition;
- that during the relevant period (26 months), XX had received a total of 45 electronic communications - the only transmission medium used - from Infront and its responsible parties, for "an average of 20 communications per year and 1.7 per month"; a frequency that, in its opinion, "would be far from any spamming activity, let alone the 'thousand commercial communications' that the complainant complains about."

The Company therefore believed that "the thesis of Mr. XX being overwhelmed with emails to the point of preventing him from properly consulting his email inbox and becoming aware of the administrative emails related to his registration is completely refuted," and that said processing had "never exceeded the limits of proportionality and respect for the individual."

Infront, with the aforementioned response, particularly regarding the five communications received by the complainant and attributable to itself, stated that, following necessary discussions with its appointed personnel, it emerged that "the sending of such communications to Mr. XX was due to a material error, committed by the company Sdam Sport Data Management s.r.l. ("Sdam"), with which Infront has a contract under which, among other things, Sdam committed to perform certain management and IT services." Sdam would have delivered to Infront "a database where, contrary to all provided precautions, the data of Mr. XX had inadvertently and mistakenly remained, a circumstance that caused the sending of five communications."

The said Company specified, and documented, that in "each of these emails there were present and clearly visible indications to access the mechanism for 'unsubscribe' from the system, which would have allowed Mr. XX (who had availed himself of the communication via certified email), if he had wished, not to be a recipient of emails anymore. It is also evident that five communications between October 2022 and February 2023 cannot constitute the conduct that the complainant describes as 'continuing to bombard [...] with commercial emails.'"

Infront stated that it had demonstrated that it had immediately taken care to delete the data of XX from its database and had requested the same from all parties that might hold the data of the interested party.

As a statistical datum in this regard, Infront specified that the number of users who had unsubscribed from the system, during the period from November 11, 2022, to February 27, 2023, was approximately 1,100, "confirming the correct functioning of the system," adding that "Mr. XX has, to date, been definitively deleted from the Endu database and therefore the complainant is no longer present either in Infront's independent database or in Engagigo's separate database."

2.4. Complainant's counterarguments.

The complainant on March 24 of this year sent a note of counterarguments to the responses of the aforementioned Companies, highlighting the persistence of violations of data protection regulations, through the further receipt of the emails in question, hypothesizing the presence, in his opinion, of some aggravating elements pursuant to Article 83 of the Regulation. Among these, he referred to the level of damage suffered by him as well as by other recipients, given that "important communications ... have been lost among the 292 advertisements sent over the course of two years and four months (0.68% of useful emails compared to the spam sent, charging, in the best case, penalties to the registrants or, alternatively, forcing them to give up participating in the event after many months of preparation) ..." [as well as to] "the willful nature of the violation (despite being aware of the serious faults, they did not take any corrective action nor did they respect the will not to receive unwanted advertising anymore)."

With a further note, on May 24, 2022, the interested party reiterated that he had received "A total of 292 emails in two years and four months ... an unsustainable number of emails received that created a spam phenomenon such as to prevent attention to administrative emails."

1. Introduction to the Registration for the Running Competition

It was added that, in his opinion, "the claim that the request for the revocation of consent to the processing of personal data was submitted not to the addresses indicated in the information for the correct management of these profiles was completely unfounded, as the undersigned preferred to send a certified email in order to obtain certainty of receipt. This procedure cannot be an obstacle to requests made by users, also to protect their interests against companies that, as the facts clearly demonstrate, ... are unable to respond to users' complaints."

2. Contestation Against Infront and Sdam

From the overall analysis of the acquired elements, possible responsibilities of Infront and Sdam emerged within a complex chain of registration and processing of data for promotional purposes, albeit for different reasons. In particular, Infront appeared to have allowed the sending of new promotional communications via email even after the opposition to the processing made by the interested party. In this case, Infront - while claiming to have provided precise instructions to its managers - has not demonstrated that it adequately controlled that the database used for its promotional campaign had been properly "cleansed" by inserting the denial for promotional purposes corresponding to the data of Mr. XX. Infront also admitted the subsequent sending, through a delegated subject, of five emails despite this denial. It was therefore considered that the aforementioned Company may have violated the principle of accountability (Articles 5, paragraph 2, and 24 of the Regulation) as well as Articles 130, paragraphs 1 and 2, of the Code and Articles 6 and 7 of the Regulation.

Regarding the unwanted mailing, this Authority reiterates that such a violation exists even when the unwanted promotional sending is singular, not distinguishing the provision of the aforementioned Article 130 based on the quantity of the sendings. Equally irrelevant, for the purposes of exemption from the attribution of unlawful processing, is the presence of the link for easy unsubscription, considering that the said provision is based on prior consent (so-called opt-in) and not on the mere right to oppose subsequent to processing (so-called opt-out). Moreover, the corrective and/or sanctioning measures referred to in Articles 58 and 83 of the Regulation are applicable both in cases of intent and in cases of negligence, changing - with the variation of the subjective element of unlawful processing - not the nature of the application, but the gradation of corrective measures as well as the

quantification of any sanction.

It was also found that SDAM, as mentioned, appointed as the data processor, may have determined, albeit erroneously, the sending of the five promotional emails and therefore should also be held accountable for the alleged violation of Articles 130 of the Code as well as Articles 6 and 7 of the Regulation. Based on the above, on April 28 of this year, it became necessary to contest the alleged violation of the following provisions of the Regulation:

- Articles 5, paragraph 2; 6, paragraph 1, letter a); 7; 24; (regarding only Infront);
- as well as Article 130, paragraphs 1 and 2, of the Code (regarding Infront and Sdam).

****3. The Defensive Memoranda****

****3.1. The Defensive Memorandum of Infront****

Infront, with a memorandum dated May 23, 2023, and similarly, in the minutes of the hearing on July 3 of this year, to which reference is made for details, defended itself against the alleged violations contested, stating the following and, in part, reconstructing some phases of the incident, within a complex chain of processing that also involved other connected subjects. In particular: the aforementioned cancellation took place through the company Sportnetwork which, on April 6, 2022, confirmed to Starfarm (with which Infront had a sub-responsible relationship, doc. 81) that the operation of cancellation of Mr. XX's data had been successful (doc. 10). The diligence of Infront's behavior would also have emerged from another aspect. In fact, the company would have directly acted, although not obliged, to urge compliance with Mr. XX's rights also from all subjects involved in the organization of registrations for the Rome Marathon who processed the data based on separate and autonomous consents, including, in particular, the company Engagigo which managed the separate ENDU platform. In light of these considerations, in Infront's opinion, the violation of the principle of "accountability" must therefore be excluded, and similarly, no responsibility can be attributed to it concerning the five communications branded "Infront," received by the complainant at a time subsequent to the events described above (see already the response of March 13, 2023). The aforementioned sending would indeed have been the result of an error made by the company Sdam, despite being obliged towards Infront, based on a contractual relationship - in effect from April 13, 2022, to March 31, 2023 - to carry out, among other things, certain services (see doc. 13 – attached to the memorandum of May 23, 2023). Following the integration of Mr. XX's complaint, Infront highlighted that it took immediate action by consulting with its assignee Sdam. As reported by Infront, from the searches carried out, it was found that, despite the specific interpretative indications on the correct promotional activity provided by the Authority with a note dated May 2, 2022, at least two further occasions, Sdam had not provided for the deletion of Mr. XX's data from its "historical" database when, on October 20, 2022, it transmitted to YTech, appointed by Infront in this regard, the file related to individuals who, in 2021, were included, having given their consent, in the database of subjects to whom commercial communications related to the running event were to be directed (doc. 14; email of October 20, 2022). The aforementioned database was represented by a zip file, encrypted and password-protected, containing a csv file with the personal data of users registered on the ENDU Platform during the 2021 Rome Marathon edition, to which Infront could not access. In a separate email, ENDU provided Y-Tech with the password to access the data contained in the aforementioned database (doc. 15), and then Y-Tech forwarded the database to Starfarm (doc. 16), which would then process the data and prepare marketing communications based on the consents highlighted by Engagigo. Furthermore, Infront had received the aforementioned password in an encrypted and inaccessible form, "to confirm the rigorous security protocols in place and to confirm the objective of limiting as much as possible the sharing of the data of the data subjects among the parties involved in the processing." Infront added that it had promptly deleted from its databases all information relating to Mr. XX and had formally and repeatedly invited all its successors to do the same. In this context, when six months later Infront received from ENDU the database of the Marathon participants (containing more than 23,000 people) for the legitimate communication activities allowed based on the consents collected, it would not have been conceivable or reasonable—let alone materially possible due to the encryption of the related password-protected file—for Infront to carry out

a further specific check on a particular aspect—the deletion of Mr. XX from the database owned by a third party. Finally, it highlighted that the alleged violation complained of by the interested party concerned a small number of emails (five), which in any case denotes the non-severity of Infront's conduct, taking into account the nature, subject, and purpose of the processing.

In light of all the above, Infront concluded that the alleged violation would not exist, and therefore it could be exempt from measures by the Authority, considering the following elements: (i) the conduct in question is not attributable to Infront either in terms of fault or intent, as it is a material error committed by a third party to whom, according to precise contractual obligations and, in any case, in good faith, Infront relied for the management of the personal data of the participants in the Rome Marathon, trusting in the correct fulfillment also by Sdam despite the clarifications received with the Authority's note of May 2, 2022; (ii) the personal data processed without consent were not sensitive data of the person, but solely the email address of the interested party; ...; (iv) in any case, following the integration of the complaint submitted by Mr. XX on February 16, 2023, Infront had immediately proceeded to permanently delete his data also from the ENDU database; (v) the technical and organizational measures implemented by Infront to prevent the continuation of the alleged harmful conduct are to be considered adequate to demonstrate the company's compliance with the principle of accountability; (vi) Infront's behavior was immediately cooperative, both towards the complainant and towards the supervisory Authority, in order to remedy the violation and mitigate its possible negative effects.

For all the reasons stated above, Infront also requested that, in the event of the adoption of an injunction order, the sanction be imposed at the lowest applicable measure.

4.2. The defense memorandum of Sdam.

In the memorandum dated May 26, 2023, and similarly in the minutes of the hearing of July 3, Sdam complained, preliminarily, about the compromise of the right to defense, asserting that it had not been informed during the preliminary investigation phase. It then asserted that it bore no responsibility in the matter. In particular, it represented that, within the services offered, it had made available to the data controller (Infront) the list of participants in the event with the data related to participation and registration for the event. In addition to such information, this list also retained the choices made by participants regarding any consents given by users during the registration phase for the event. Sdam clarified that the retention of such information collected and "photographed" the expressions of consent and the authorizations granted during registration by the user. According to the Company, the subsequent "dynamic" phase of revocation/opposition of the expressions of consent given by users would fall under the exclusive competence of the data controller with the support of further subjects (specifically identified and named by said controller). The Company emphasized that the management of this "dynamic" phase (management of the consents of the interested parties) did not fall among the services provided by Sdam, also because such requests, as indicated in the information provided during the registration phase to participants, had to be directed directly to the attention of the controller (the organizer). Sdam further clarified that the retention of the data of the interested party, even following his request for opposition, had been justified by...

contractual reasons (proof of registration and participation in events) and legal obligations; in particular, registration for the event involved acceptance of a regulation, an economic transaction that needed to be retained for tax and accounting reasons and to manage occurrences such as claims for injuries or various disputes. Sdam, due to the activities covered by the contract with Infront, made available to the latter the lists of participants in the 2021 event, which necessarily included, for the reasons mentioned above, the data of XX. The Company concluded by asserting that the erroneous transmission of the communications subject to the complaint was not attributable to it and therefore requested the dismissal of the initiated proceedings.

5. Legal assessments.

With reference to the factual profiles highlighted above, also based on the statements of the Companies, as well as the documentation produced by them, for which they are accountable under Article 168 of the Code, the following legal assessments are made.

Regarding Infront, it can be said that it – having repeatedly notified, in writing, the other Companies involved in the processing regarding the need to prevent further promotional sends to the interested party, as well as due to the remedy (encryption) implemented to keep such data and those of other interested parties confidential – has adopted appropriate organizational and technical measures to ensure compliance with the processing of the interested party's data and should therefore be considered not to have confirmed the alleged violation attributed to the same Company.

Regarding Sdam, firstly concerning the procedural aspect, which is the subject of complaint, it should be highlighted that a request for information and/or documents is not a necessary and unavoidable phase of the overall procedure initiated by the Authority. In this sense, Article 10, paragraph 3, of Regulation No. 1/2019 of the Authority – in www.gpdp.it, doc. web no. 9107633 – provides that the Authority, in relation to the complaints received, “verifies whether there are suitable elements regarding the alleged violations and the measures requested by the applicant. To this end, the department, service, or other organizational unit examines the documentation received and may take care of acquiring clarifications and information regarding the facts and circumstances referred to in the complaint, also by personally hearing or through a proxy the data controller or the processor, by requesting information or the exhibition of documents pursuant to Article 157 of the Code signed by the competent manager...”. Therefore, a contestation of alleged violations can occur even in the absence of prior communication with the Authority when profiles of a possible violation are detected based on the elements already available. Moreover, the right to defense, invoked by Sdam, has been widely guaranteed by two fundamental safeguards, following the formal communication of the initiation of the procedure, such as the possibility of submitting defensive writings and the possibility of requesting a hearing before the Authority.

On the merits, while maintaining the legitimacy of the retention of the data in question for the invoked contractual and administrative purposes, it must be considered that, despite the instructions provided to it by Infront, Sdam did not proceed to “clean” its historical database and, without the necessary diligence, therefore communicated the data in question to the subjects in charge of the promotional campaign. Furthermore, it is irrelevant that such a task is not expressly established by the contract, as it, even in a perspective of minimizing processing (see Article 5, paragraph 1, letter c) of the Regulation) can be attributed to any subject that processes personal data and, even more so, to the role of the processor, as the alter ego of the data controller. Considering what has been collectively stated by the parties, it should also be clarified that:

- the application of Article 130, paragraphs 1 and 2, of the Code, relating to automated promotional communications in the absence of consent, does not require a plurality of communications, nor does it set a minimum quantity, as even one is sufficient to identify the violation, also pursuant to Article 83 of the Regulation (see Guidelines July 4, 2013 regarding promotional activities and combating spam);
- such a violation may exist and be sanctioned by the Authority, even in the absence of an alleged damage (such as the loss of a communication that could be compensated by the ordinary judicial authority);
- as repeatedly noted by the Authority, the exercise of the rights of the interested parties under Articles 12-22 of the Regulation should be facilitated as much as possible, so it should be received and implemented through all communication channels provided by the Company (including, even more so, the certified email address as it is suitable to guarantee the certainty of the precise moment of sending as well as the receipt of a communication), even if they do not fall within those (such as ordinary email or the personal area of the website) specifically made available by the Company for rights regarding the protection of personal data (see similarly order injunction against Sky Italia S.r.l. - September 16, 2021 [doc. web no. 9706389], in which the Authority, pursuant to Article 58, paragraph 2, letter d) of the Regulation, ordered the same to “facilitate the exercise of the right to object by providing among the channels for receiving related requests also the certified email indicated in the business register”);
- if personal data are processed for

of the administrative fine imposed, and that the payment of this amount will result in the termination of the proceedings.

d) orders the publication of this provision on the website of the Authority, as provided for by Article 166,

paragraph 7, of the Code and Article 16 of the Regulation of the Authority No. 1/2019.

This decision is made in light of the importance of the right of opposition of the data subjects and the need for non-discrimination with respect to similar cases.

Finally, the conditions set forth in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Authority, are met for the annotation of the violations identified herein in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

a) pursuant to Article 57, paragraph 1, letter f), of the Regulation, declares unlawful, in the terms outlined in the reasoning, the processing carried out by the company Sdam s.r.l., based in via Paciotto 6/A, Alberi di Vigatto (PR), VAT number 02139130344; and, consequently:

b) pursuant to Article 58, paragraph 2, letter d), of the Regulation, orders the same to adopt organizational and technical measures to ensure the right of opposition of the data subjects;

c) pursuant to Article 157 of the Code, orders the Company to communicate to the Authority, within 30 days from the notification of this provision, the initiatives undertaken to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative fine provided for by Article 83, paragraph 5, of the Regulation;

ORDERS

pursuant to Article 58, paragraph 2, letter i), of the Regulation, Sdam s.r.l., represented by its legal representative, to pay the sum of €5,000.00 (five thousand/00), as an administrative fine for the violations indicated in the reasoning; it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed fine.

of the imposed sanction;

ORDERS

the aforementioned Company, in the event of failure to resolve the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €5,000.00 (five thousand/00), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions in accordance with Article 27 of Law No. 689/1981;

PROVIDES

as an ancillary sanction, pursuant to Article 166, paragraph 7, of the Code and Article 16 of the Garante Regulation No. 1/2019, the publication on the Garante's website of this provision and, pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, August 3, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei